



CHAPTER ix

An Act to authorise the South Essex Waterworks Company to consolidate their ordinary stocks and for other purposes. [6th May 1953.]

WHEREAS—

(1) The South Essex Waterworks Company (in this Act referred to as “the Company”) were incorporated by the South Essex Waterworks Act 1861 and under the provisions of the South Essex Waterworks Acts 1861 to 1936 are authorised to supply water within the limits in the county of Essex thereby prescribed :

(2) The Company have in accordance with the provisions of the South Essex Waterworks Acts 1861 to 1936 created and issued certain ordinary stocks :

(3) The following is a statement of the existing ordinary stocks of the Company as at the thirty-first day of December nineteen hundred and fifty-one:—

<i>Authorising Act</i>	<i>Maximum dividend</i>	<i>Nominal amount issued</i> £
South Essex Waterworks Act 1861 ...	10%	85,700
South Essex Waterworks Act 1882 ...	7%	75,000
South Essex Waterworks Act 1901 ...	5%	170,800
South Essex Waterworks Act 1921 ...	6%	175,000
South Essex Waterworks Act 1928 ...	6%	600,000
South Essex Waterworks Act 1928 ...	5%	116,700
South Essex Waterworks Act 1935 ...	5%	737,718
		£1,960,918

(4) It is expedient that the existing ordinary stocks of the Company as issued at the passing of this Act should be consolidated as in this Act provided and that there should be issued to the persons who on the first day of July nineteen hundred and fifty-three or such later date as may be determined in accordance with this Act are the holders of the said existing ordinary stocks the amounts of consolidated ordinary stock provided for in this Act:

(5) It is expedient that the other provisions of this Act should be enacted:

(6) The objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective titles.

1.—(1) This Act may be cited as the South Essex Waterworks Act 1953.

(2) The South Essex Waterworks Acts 1861 to 1936 so much of the Hanningfield Water Order 1950 as relates to the Company and this Act may together be cited as the South Essex Waterworks Acts and Order 1861 to 1953.

Incorporation
of Acts.

2. The following enactments (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act:—

(a) The Companies Clauses Consolidation Act 1845 except the provisions thereof with respect to the conversion of the borrowed money into capital;

(b) The Companies Clauses Act 1863 except Part IV as amended by subsequent Acts.

For the purpose of such incorporation the term "special Act" in the said Acts respectively shall be construed as a reference to this Act and the term "company" shall mean the Company.

Interpretation.

3.—(1) In this Act unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

"Company" means the South Essex Waterworks Company;

"date of consolidation" means the first day of July nineteen hundred and fifty-three or such later date as may be determined by resolution of the directors;

"directors" means the directors of the Company;

“existing ordinary stocks” means the ten per centum ordinary stock the seven per centum ordinary stock the six per centum ordinary stock and the five per centum ordinary stock ;

“five per centum ordinary stock” means the ordinary stock of the Company entitled to a maximum dividend of five per centum per annum ;

“limits of supply” means the limits within which the Company are from time to time authorised to supply water ;

“seven per centum ordinary stock” means the ordinary stock of the Company entitled to a maximum dividend of seven per centum per annum ;

“six per centum ordinary stock” means the ordinary stock of the Company entitled to a maximum dividend of six per centum per annum ;

“ten per centum ordinary stock” means the ordinary stock of the Company entitled to a maximum dividend of ten per centum per annum.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

4.—(1) As on and from the date of consolidation the existing ordinary stocks shall by virtue of this Act be consolidated into one and shall be known as five per centum consolidated ordinary stock ranking in all respects as one and the same class of stock and conferring upon the holders thereof the same rights in all respects inter se. Consolidation of ordinary stocks.

(2) As on the date of consolidation there shall be created by virtue of this Act such amount of five per centum consolidated ordinary stock entitled to a maximum dividend of five per centum per annum as shall be required for the purposes of this section and the stock so created shall be deemed to be fully paid up and shall be divided among and shall as from the said date be vested without payment in the persons who immediately before the said date are entitled to be the holders of the existing ordinary stocks according to their respective holdings as follows :—

for each ten pounds of ten per centum ordinary stock
twenty pounds of five per centum consolidated ordinary stock ;

for each ten pounds of seven per centum ordinary stock
fourteen pounds of five per centum consolidated ordinary stock ;

for each ten pounds of six per centum ordinary stock twelve pounds of five per centum consolidated ordinary stock ;

for each ten pounds of five per centum ordinary stock ten pounds of five per centum consolidated ordinary stock.

(3) The stock so to be created and divided shall as soon as practicable be registered in the books of the Company in the respective names of the persons entitled thereto and shall rank for dividend as on and from the date of consolidation.

(4) The existing ordinary stocks shall not rank for dividend after the date of consolidation.

As to
fractional
parts of one
pound of
consolidated
ordinary stock.

5.—(1) Where under this Act a holder of any of the existing ordinary stocks would be entitled to be registered as the holder of any amount of consolidated ordinary stock created by this Act comprising or including any fractional part of one pound thereof the Company in lieu of registering such holder and issuing to him a certificate as holder of an amount of consolidated ordinary stock comprising or including such fractional part shall pay to such holder a sum in cash equal to the nominal value of such fractional part and shall register such holder and issue to him a certificate of the amount of consolidated ordinary stock to which he shall be entitled as aforesaid excluding such fractional part and the receipt of such holder or in the case of joint holders of that one of them whose name stands first in the register for the sum in cash so paid as aforesaid shall be a sufficient discharge to the Company in respect of such fractional part.

(2) The Company may either cancel all or any consolidated ordinary stock in respect of which such payment has been made or issue the same to any willing purchaser thereof in amounts of one pound or multiples thereof but not otherwise and any loss or expense which may be incurred in connection with such issue shall be borne by the Company.

Exchange of
certificates.

6. The Company shall call in and cancel the certificates of the existing ordinary stocks of the Company consolidated by virtue of this Act and issue in lieu thereof certificates of consolidated ordinary stock but no holder of any of the existing ordinary stocks shall be entitled to any such certificate of consolidated ordinary stock under this Act until he shall have delivered up to the Company to be cancelled the certificate or certificates of such existing ordinary stock or shall have proved to the reasonable satisfaction of the directors the loss or destruction thereof and shall have given such guarantee or indemnity in respect thereof as the directors may require but if any holder of any such existing ordinary stock neglects or omits to send or deliver to the Company his certificate or certificates thereof for the

period of one year after notice in writing sent by post to him at the address of such holder appearing in the stockholders' address book or card or other index of the Company the Company may retain any dividend declared upon or in respect of the consolidated ordinary stock representing any such existing ordinary stock until such certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors to have been lost or destroyed and such guarantee or indemnity as aforesaid is given.

7. All consolidated ordinary stock into which any of the existing ordinary stocks is consolidated by virtue of this Act shall be held in the same rights upon the same trusts and subject to the same powers provisions charges and liabilities as those in or upon or subject to which such existing ordinary stock was held immediately before the date of consolidation and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such existing ordinary stock and trustees executors or administrators and all other holders in any representative or fiduciary capacity may retain dispose of or otherwise deal with the same as fully and freely in all respects as they might have retained disposed of or otherwise dealt with such existing ordinary stock.

Trustees to retain consolidated ordinary stock.

8. All transfers or other dispositions of any of the existing ordinary stocks consolidated by virtue of this Act as subsisting up to the date of consolidation shall on and from such date be valid and have due effect given to them respectively as transfers of the respective amounts of consolidated ordinary stock and cash (if any) which the existing ordinary stock thereby expressed to be transferred or disposed of represents although the instrument transferring them or disposing thereof shall describe such stock by the name or denomination which the stock transferred or disposed of had before the date of consolidation and the bequest of or any covenant or provision of any deed or agreement relating to any specific amount of any of the existing ordinary stocks shall be held to relate to the nominal amount of consolidated ordinary stock representing such existing ordinary stock.

Transfers of stock by present name to be valid.

9.—(1) In addition to any period during which they may close the register of transfers under section 14 (Further provision as to closing of transfer books) of this Act the directors may at any time between the passing of this Act and the date of consolidation close the register of transfers of existing ordinary stocks for a period not exceeding fourteen days and fix a day for such closing by giving not less than seven days' notice by advertisement in a newspaper circulating in the limits of supply.

Closing of transfer books before date of consolidation.

(2) Any transfer of any of the existing ordinary stocks lodged for registration with the Company while the register of transfers of such existing ordinary stock is so closed shall as between the Company and the person claiming under the transfer but not otherwise be considered as made subsequently to the date on which the said register of transfers is reopened.

Maximum
rates of
dividend on
consolidated
ordinary stock.

10. As from the date of consolidation the Company shall not in respect of any year pay a dividend on the consolidated ordinary stock created by this Act at a rate greater than five per centum unless a larger dividend be at any time necessary to make up the deficiency on any previous dividend which shall have fallen short of the said yearly rate of five per centum.

Persons to be
treated as
stockholders.

11.—(1) The persons whose names appear immediately before the date of consolidation in any register of transfers of the Company to be the holders of any of the existing ordinary stocks to which the register relates shall unless the contrary be proved to the satisfaction of the directors be considered to be the holders of that stock and the receipt in writing of such persons or of their executors or administrators or of the guardian of the estate of any such person being a minor shall be an effectual discharge to the Company and the directors.

(2) Where the directors are for three months after the date of consolidation unable after diligent inquiry to ascertain the person to whom any consolidated ordinary stock ought to be transferred or money ought to be paid or who can give an effectual receipt therefor they may at any time after the expiration of that period pay such stock or money into court as if it belonged to a trust of which they were trustees.

Minimum
holdings of
ordinary stock.

12.—(1) All consolidated ordinary stock of the Company issued by virtue of this Act and all ordinary stock of the Company issued after the passing of this Act shall be issued and be held in amounts of one pound or of a multiple of one pound and not otherwise and the Company shall not be under any obligation to register a transfer of any consolidated ordinary stock or ordinary stock which would make the holding (if any) of the transferor or transferee an amount other than one pound or a multiple of one pound of consolidated ordinary stock or ordinary stock as the case may be.

(2) Notice of the effect of this section so far as applicable shall be stated in all certificates of consolidated ordinary stock issued by virtue of this Act and of all ordinary stock issued after the passing of this Act.

13. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 notice of all general meetings of the Company (whether ordinary or extraordinary) may if the directors so determine be given by letter sent by ordinary letter post to each stockholder instead of by public advertisement: Notice of meetings.

Provided that the letters giving the notice shall be directed according to the registered address or other known address of each stockholder and posted not later than seven clear days before the date of the meeting. In proving that any such notice has been given it shall be sufficient to prove that the letter containing the notice was properly addressed and posted as a prepaid letter not later than the time hereby prescribed.

14.—(1) The directors may close the register of transfers of any ordinary stock and preference stock of the Company of any class or any file of such transfers kept by the Company in lieu of any such register in pursuance of section 15 (Register of transfers) of this Act at such times and for such periods not exceeding in the whole thirty days in any year as they may from time to time determine and may close the register of transfers of debenture stock or mortgages of the Company of any class or any file of such transfers kept by the Company in lieu of any such register in pursuance of the said section 15 at such times and for such periods not exceeding in the whole thirty days in any year as they may from time to time determine. Further provision as to closing of transfer books.

(2) Seven days' notice of the closing of any such register or file shall be given by advertisement in a newspaper circulating in the limits of supply.

(3) Any transfer of any ordinary stock or preference stock or debenture stock or mortgages of the Company lodged for registration with the Company while the register or file of transfers relating to stock or mortgages of the same class is so closed shall as between the Company and the persons claiming under the transfer but not otherwise be considered as made subsequently to the date on which the said register or file of transfers is reopened.

15. Notwithstanding anything in the Companies Clauses Acts 1845 to 1888 it shall not be obligatory on the Company to keep registers of transfers of ordinary stock and preference stock debenture stock and mortgages respectively so long as the Company in lieu of those registers shall keep files of all transfers and evidences of transmission of any ordinary stock or preference stock debenture stock or mortgages of the Company which are sent to them for registration in accordance with the provisions of those Acts. Register of transfers.

Repeals.

16.—(1) The following enactments are hereby repealed:—

The South Essex Waterworks Act 1921—

Section 63 (Closing of transfer books):

The South Essex Waterworks Act 1928—

Section 70 (Closing of transfer books).

(2) The following enactments shall be repealed on and from the date of consolidation to the extent hereinafter mentioned:—

The South Essex Waterworks Act 1861—

Section 4 (Capital);

Section 5 (Calls):

The South Essex Waterworks Act 1882—

So much of section 19 (Rates of dividend on new shares or stock) as relates to ordinary shares or stock;

Section 20 (Dividends on different classes of stock or shares to be paid proportionately):

The South Essex Waterworks Act 1921—

So much of section 51 (Limit of dividend) as relates to ordinary stock;

Section 52 (As to back dividends).

Costs of Act.

17. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

Table of Statutes referred to in this Act

Short title	Session and chapter
Companies Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 16.
South Essex Waterworks Act 1861 ...	24 & 25 Vict. c. cxxxvii.
Companies Clauses Act 1863 ...	26 & 27 Vict. c. 118.
South Essex Waterworks Act 1882 ...	45 & 46 Vict. c. xlv.
South Essex Waterworks Act 1901 ...	1 Edw. 7. c. ccvii.
South Essex Waterworks Act 1921 ...	11 & 12 Geo. 5. c. lxxxiv.
South Essex Waterworks Act 1928 ...	18 & 19 Geo. 5. c. lxxix.
South Essex Waterworks Act 1935 ...	25 & 26 Geo. 5. c. xlviii.

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